

Data Processing Addendum

Legal & compliance · draft for counsel review

Parties	Smart Buildings Inc. (“Processor”) and the Customer (“Controller”)
Product	ATLAS OS (the Habitat Twin)
Status	Draft v0.1 — review with counsel before signing
Incorporates	Terms of Service · Privacy Policy · Security & Data Compliance

****Disclaimer.**** Template for review by qualified counsel; not legal advice. This DPA applies where we process personal information on a customer’s behalf (B2B deployments).

1. Roles

The Customer is the **Controller** (or, under PIPEDA, the organization accountable for the processing of personal information only on the Controller’s documented instructions).

2. Scope of processing

Item	Detail
Subject matter	Provision of ATLAS OS
Duration	Term of the agreement + retention/return/deletion period
Nature & purpose	Hosting, telemetry processing, incident/broadcast handling
Data types	Operator accounts, resident contact data, operational telemetry, camera free presence; PHI only if telehealth is enabled
Data subjects	Operators, residents

3. Processor obligations

- Process only on documented instructions; no unrelated use or sale.
- Ensure personnel are bound by confidentiality.
- Implement the security controls in [Security & Data Compliance §4](#).
- Assist the Controller with data subject requests and regulator inquiries.
- Notify the Controller **without undue delay** on becoming aware of a breach, with details to support the Controller’s PIPEDA/PHIPA obligations.

4. Sub processors

The Controller authorizes sub processors on our current list (hosting, database, email). We impose equivalent data protection terms and remain responsible for their performance; we give notice of changes and a chance to object.

5. International transfers

Where data is processed outside the Controller's jurisdiction, we apply contractual and technical safeguards and disclose processing locations on request.

6. Security & breach

See §4 and §7 of [Security & Data Compliance](#). We maintain a record of breaches (PIPEDA) and support required notifications.

7. Audits

On reasonable notice and confidentiality terms, we provide information necessary to demonstrate compliance (e.g. SOC 2 report when available) and allow audits scoped to this DPA.

8. Return & deletion

On termination, at the Controller's choice, we return or delete personal information per the [retention schedule](#) §5, save where law requires retention.

9. PHI specifics (PHIPA)

Where PHI is processed, we act consistent with the Controller's role under PHIPA, restrict access to the minimum necessary, segregate PHI, and support the Controller's PHIPA duties.

10. Order of precedence

This DPA prevails over conflicting terms regarding personal information processing.

Signed for the Processor: _____ Date: _____
Signed for the Controller: _____ Date: _____

